

**BEFORE THE
FEDERAL MARITIME COMMISSION**

HAPAG-LLOYD, A.G., AND
HAPAG-LLOYD (AMERICA) LLC –

POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(c)

DOCKET NO. 21-09

JOINT MOTION FOR CONFIDENTIAL TREATMENT OF CERTAIN MATERIALS

Pursuant to 46 C.F.R. §§ 502.69 and 502.141(j)(1), the Bureau of Enforcement (“BOE”) and Respondents Hapag-Lloyd AG and Hapag-Lloyd (America) LLC (“Respondents”)(BOE and Respondents are referred to jointly as the “Parties”), hereby jointly move for confidential treatment of certain materials included with their respective briefs.

On February 17, 2022, the presiding officer issued an Order Entering Protective Order As Modified, providing for the confidential treatment of certain materials produced in discovery in this proceeding. The Protective Order as issued contemplates the use of confidential material in connection with briefing on the merits, and requires that a motion identify each items for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential information.

Pursuant to the foregoing, the Parties jointly move for the continued confidential treatment of each of the items set forth below, on the grounds indicated.

1. Marine Terminal Services Agreements of Hapag-Lloyd AG – In response to discovery requests from BOE, Hapag-Lloyd produced copies of marine terminal services agreements

between Hapag-Lloyd and various marine terminal operators in the Ports of Los Angeles and Long Beach. Hapag-Lloyd designated these agreements as confidential under the terms of the protective order. These agreements contain the financial and other terms of the relationship between Hapag-Lloyd and the counterparty marine terminal operator. These documents are treated as confidential by the parties thereto. Public disclosure of the terms of these agreements would be detrimental to both Hapag-Lloyd and the relevant terminal operator, as it would disclosure commercially and competitively sensitive information (such as the rates paid for marine terminal services) to their respective competitors.

2. Demurrage/Detention Data Produced By Hapag-Lloyd AG (pages BOE000380-BOE000381 of Exhibits to BOE Opening Brief) – In response to discovery requests from BOE, Hapag-Lloyd produced data on its collection of demurrage and detention. This is data which Hapag-Lloyd considers commercially and competitively sensitive, and which it does not make public. Hapag-Lloyd designated this data as confidential under the terms of the protective order. This same data has been provided to the Federal Maritime Commission (“FMC” or “Commission”) confidentially as part of the Commission’s VOCC audit program, and as such is exempt from public disclosure. Disclosure of this data to the public would have the effect of disclosing it to Hapag-Lloyd’s competitors, which would be commercially harmful to Hapag-Lloyd and would violate the terms upon which the data was provided to the FMC initially.

3. Hapag-Lloyd AG/Hapag-Lloyd (America) Agency Agreement (pages BOE000367 to BOE000379 of Exhibits to BOE’s Opening Brief) -- In response to discovery requests from BOE, Hapag-Lloyd produced the agency agreement between Hapag-Lloyd AG and Hapag-Lloyd (America) LLC (including amendments thereto). Hapag-Lloyd designated this agreement as confidential under the terms of the protective order. This agreement contains the financial and

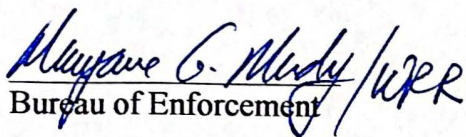
other terms of the relationship between Hapag-Lloyd AG and its agent. The agreement is considered by the parties thereto to be confidential, and is treated accordingly. Public disclosure of the terms of this agreement would be detrimental to Hapag-Lloyd and would improperly disclose commercially sensitive information about the costs of Hapag-Lloyd's operations to its competitors.

4. Hapag-Lloyd Detention Waivers (Exhibit B to Hapag-Lloyd Brief, Paragraph 8, p. HL0009; Exhibits #1 and #3 to Exhibit B to Hapag-Lloyd Brief, pp. HL0014 to HL0036 and HL0038 and HL0040) – In support of its position that it has adopted a reasonable policy with respect to the waiver of detention charges and in connection with its brief, Hapag-Lloyd provided information about the days on which it has granted waivers from detention charges. This is highly sensitive commercial information that is treated as confidential by Hapag-Lloyd. Public disclosure of this information would make the information available to Hapag-Lloyd's competitors, and could cause competitive harm to Hapag-Lloyd.

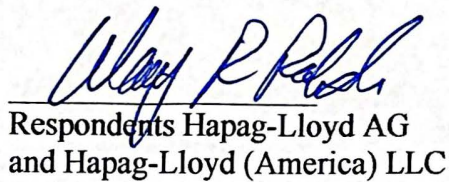
5. Demonstrative Session (Exhibit G to BOE Opening Brief) – In support of its opening brief, BOE produced the transcript of a demonstrative session relating to the operation of a third-party website used by motor carriers to monitor the availability of appointments at marine terminals. This demonstrative session explains the features and operations of the third-party website. Information about the website is the proprietary information of the website operator which BOE is not authorized to disclose. Disclosure of this information could cause competitive harm to the website operator.

For the foregoing reasons, the parties jointly request that the foregoing information be kept confidential and not disclosed to the public.

Respectfully submitted,


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